

23SMCV03929 23SMCV03929

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-16

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C09%2F16%2F2026

Source SHA-256: cd5ae460ee6463be3ad1eb93034a2f3a5aa8a5019231496d31651a7e2158ae1d

Case Number: 23SMCV03929 Hearing Date: September 16, 2026 Dept: N

TENTATIVE RULING

Plaintiff L.W.'s motion for an order for leave to proceed under the initials L.W. is GRANTED.

Plaintiff L.W. to give notice.

REASONING

Plaintiff L.W. ("Plaintiff") moves the court for an order for leave to proceed under the initials L.W. Plaintiff asserts Defendant Geffen Academy at UCLA ("Defendant") advised Plaintiff via email on July 20, 2026, that it does not oppose this motion. Plaintiff argues he should be permitted to proceed under his initials because the subject matter is highly sensitive and personal in nature and the events giving rise to this action occurred while Plaintiff was a minor.

Unless confidentiality is required by law, court records are presumed to be open. (Cal. Rules of Court rule 2.550(c).) The public's First Amendment right of access to civil proceedings includes the right to know the identity of the parties, and allowing a party to litigate anonymously implicates that right much as sealing a record does. (Dept. of Fair Employment & Housing v. Superior Court (2022) 82 Cal.App.5th 105, 111.) Relief is warranted only if an overriding interest will likely be prejudiced without use of a pseudonym, and it is not feasible to protect that interest with less impact on the constitutional right of access. (Ibid.) Outside of circumstances in which anonymity is authorized by statute, litigating by pseudonym should occur "only in the rarest of circumstances." (Id., at p. 112.) However, anonymity may be granted when necessary to preserve an important privacy interest. (Id., at p. 110.) The Court may seal a record if the following are met: an overriding interest that overcomes the right of public access; that the interest supports the relief; a substantial probability that the interest will be prejudiced absent relief; that the relief is narrowly tailored; and that no less restrictive means exist. (Rule 2.550(d).)

Applying that standard, the Court finds the showing satisfied here.

First, an overriding interest exists. The subject of this action is Plaintiff's medical and psychological history, his disability diagnoses, the mental-health treatment he required as a child, and his confidential educational records. Privacy of records of this kind are a substantial interest. Here, the interest is heightened because the events underlying the action occurred while Plaintiff was a minor.

Second, the overriding interest supports the relief and would be prejudiced without it. If Plaintiff's true name is placed in the public record, it will be searchable and permanently linked to his medical, psychological, and educational history. The prejudice is the disclosure itself.

Third, the relief is narrowly tailored and no less restrictive means exist. Plaintiff seeks only to withhold his name; he does not seek to seal the pleadings, close the courtroom, or restrict public access to any substantive filing. Because it is the linkage between Plaintiff's name and his records that causes the harm, withholding the name is the least restrictive means of preventing it.

Finally, granting the relief does not impair the competing interests the overriding-interest test protects. The public's legitimate interest lies in the legal questions this action presents concerning a federally funded school's obligations to a disabled student, not in the individual student's name. The Court, the parties, and the public may follow every aspect of the litigation without Plaintiff's name appearing in the caption. Further, Defendant is not prejudiced. Defendant has known Plaintiff's identity throughout the litigation, has litigated on that basis, and does not oppose the Motion.

Based on the foregoing reasons, Plaintiff L.W.'s Motion for Leave to Proceed Under Initials "L.W." is GRANTED. Plaintiff may proceed under his initials in all publicly filed documents, with his true name available for use in discovery subject to any appropriate protective order.